

NON-DISCLOSURE AGREEMENT (NDA)

This Non-Disclosure Agreement (the "Agreement") is entered into as of **[Date]** (the "Effective Date") by and between:

[Client Name/Company Name], having its principal place of business at **[Client Address]** (hereinafter referred to as the "Disclosing Party");

AND

NOVADESK, having its principal place of business at **[Agency Address]** (hereinafter referred to as the "Receiving Party" or "Agency").

The Disclosing Party and the Receiving Party are collectively referred to as the "Parties" and individually as a "Party."

1. PURPOSE

The Parties intend to explore a potential business relationship regarding software development, web application development, AI solutions, or related IT services (the "Purpose"). In connection with the Purpose, the Disclosing Party may disclose certain Confidential Information to the Receiving Party.

2. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any and all technical and non-technical information provided by the Disclosing Party to the Receiving Party, whether in oral, written, graphic, or electronic form, including but not limited to:

- Business plans, financial data, and marketing strategies
- Source code, algorithms, software designs, and databases
- Customer lists, vendor data, and pricing information
- Trade secrets, patents, and proprietary formulas

3. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

Confidential Information does not include information that:

1. Is or becomes publicly available without breach of this Agreement;
2. Was known to the Receiving Party prior to its disclosure by the Disclosing Party;
3. Is rightfully received by the Receiving Party from a third party without restrictions on disclosure;
4. Is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

4. OBLIGATIONS OF RECEIVING PARTY

The Receiving Party agrees to:

- Hold the Confidential Information in strict confidence;
- Not disclose the Confidential Information to any third party without prior written consent, except to employees, contractors, or agents who have a "need to know" and are bound by confidentiality obligations at least as restrictive as this Agreement;
- Use the Confidential Information solely for the Purpose stated in this Agreement;
- Protect the Confidential Information using at least the same degree of care it uses to protect its own confidential information, but in no event less than a reasonable degree of care.

5. TERM

This Agreement shall commence on the Effective Date and shall remain in effect for a period of **[Number, e.g., 2] years**. The obligations of confidentiality regarding trade secrets shall survive indefinitely.

6. RETURN OF MATERIALS

Upon written request by the Disclosing Party, the Receiving Party shall promptly return or destroy all copies of the Confidential Information in its possession and certify such destruction in writing.

7. NO LICENSE OR OWNERSHIP

Nothing in this Agreement is intended to grant any rights, title, or interest in or to the Confidential Information to the Receiving Party. All Confidential Information remains the exclusive property of the Disclosing Party.

8. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of India. Any disputes arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts in [City, State, e.g., Mumbai, Maharashtra].

IN WITNESS WHEREOF, the Parties have executed this Non-Disclosure Agreement as of the Effective Date.

For Disclosing Party (Client)

Signature: _____
Name: _____
Title: _____
Date: _____

For Receiving Party (NOVADESK)

Signature: _____
Name: _____
Title: _____
Date: _____

MASTER SERVICE AGREEMENT (MSA)

This Master Service Agreement (the "Agreement") is entered into as of [Date] by and between:

[Client Name/Company Name], having its principal place of business at [Client Address] (the "Client");

AND

NOVADESK, having its principal place of business at [Agency Address] (the "Agency").

1. SCOPE OF SERVICES

The Agency agrees to provide the services described in the specific Scope of Work (SOW) documents or project proposals attached to this Agreement (collectively, the "Services"). Each SOW shall be governed by the terms and conditions of this Agreement.

2. TIMELINE AND MILESTONES

The timeline and specific milestones for each project will be outlined in the respective SOW. Time is of the essence; however, any delays in content delivery, approvals, or access provided by the Client will extend the project timeline accordingly.

3. FEES, TAXES, AND PAYMENT TERMS

- Fees:** The Client agrees to pay the Agency the fees set forth in the applicable SOW.
- Payment Schedule:** Payments shall be made according to the milestone schedule (e.g., 50% advance, 30% on design approval, 20% prior to final handover).
- Taxes:** All fees are exclusive of GST and other applicable taxes, which shall be borne by the Client.
- Late Payments:** Invoices are due within [Number, e.g., 7] days of receipt. Late payments may incur interest or result in the suspension of Services.

4. CLIENT OBLIGATIONS

The Client is responsible for:

- Providing timely feedback and approvals.
- Supplying all necessary content, brand assets, and credentials (hosting, APIs, etc.).
- Ensuring that they have the legal right and ownership of any provided materials (images, text, fonts) and indemnifying the Agency against copyright claims.

5. CHANGE CONTROL PROCESS

Any request for work outside the approved SOW will be treated as a "Change Request." The Agency will provide a cost and time impact estimate. No additional work will commence without written approval (email accepted) of the Change Request.

6. INTELLECTUAL PROPERTY RIGHTS

- Pre-existing IP:** Each party retains ownership of its pre-existing intellectual property.
- Deliverables:** Upon receipt of full and final payment, the Agency transfers all rights, title, and interest in the custom

deliverables to the Client.

3. **License to Agency:** The Client grants the Agency the right to display the completed project in its portfolio and marketing materials, unless explicitly restricted by an NDA.

7. ACCEPTANCE AND WARRANTY

1. **Acceptance:** The Client shall have [Number, e.g., 5] days to review and test the deliverables. If no issues are reported in writing within this period, the work is deemed accepted.
2. **Warranty:** The Agency warrants that the Services will be performed in a professional manner. Following launch, the Agency provides a [Number, e.g., 30]-day bug-fix period for issues related to the delivered code.

8. TERMINATION

Either party may terminate this Agreement with [Number, e.g., 15] days written notice. In the event of termination, the Client shall pay for all work completed up to the termination date.

9. LIMITATION OF LIABILITY

The total liability of the Agency for any claim arising out of this Agreement shall not exceed the total fees paid by the Client for the specific SOW giving rise to the claim. The Agency shall not be liable for indirect, consequential, or punitive damages.

10. DISPUTE RESOLUTION AND GOVERNING LAW

This Agreement shall be governed by the laws of India. Any disputes shall be resolved through good-faith negotiations. If unresolved, disputes shall be subject to the exclusive jurisdiction of the courts in [City, State].

IN WITNESS WHEREOF, the Parties hereto have executed this Master Service Agreement as of the date first above written.

For Client

Signature: _____

Name: _____

Date: _____

For NOVADESK

Signature: _____

Name: _____

Date: _____

WEBSITE & MOBILE APP DEVELOPMENT CONTRACT

This Agreement is made on [Date], between [Client Name] ("Client") and NOVADESK ("Agency").

1. PROJECT SCOPE

The Agency will design and develop a [Website / Mobile App] as detailed in the attached Scope of Work (SOW).

- **Platform:** [e.g., React/Next.js, Flutter, React Native, WordPress]
- **Features:** As per SOW.
- **Compatibility:** [e.g., Modern browsers, iOS 15+, Android 10+]

2. CLIENT RESPONSIBILITIES

- Provide all text content, images, branding guidelines, and API keys within the agreed timeframe.
- Procure domain names, hosting, SSL certificates, and App Store / Play Store developer accounts (unless explicitly included in the SOW).

3. DEVELOPMENT PROCESS & REVISIONS

1. **Design Phase:** The Agency will provide UI mockups. The Client is entitled to [Number, e.g., 2] rounds of revisions.
2. **Development Phase:** Upon design approval, development will commence. Structural or design changes requested after this point will incur additional fees.
3. **App Store Submission:** If applicable, the Agency will assist in submitting the app. However, the Agency is not liable for rejections due to Apple/Google policy violations related to the Client's business model.

4. ACCEPTANCE & DEPLOYMENT

Following completion of the development phase, the Client will have a UAT (User Acceptance Testing) period of **[Number, e.g., 5]** days to report bugs. Once approved, the project will be deployed to the production server or submitted to App Stores.

5. SOURCE CODE & INTELLECTUAL PROPERTY

Source code and all intellectual property rights will be transferred to the Client **only upon receipt of 100% of the project fees**. Until full payment is cleared, the Agency retains all rights.

6. PAYMENT TERMS

- **Total Project Fee:** Rs. [Amount] + applicable GST.
- **Advance:** [Amount/Percentage] due before project kick-off.
- **Milestones:** As defined in the SOW.

7. SIGNATURES

For Client

Signature: _____

Date: _____

For NOVADESK

Signature: _____

Date: _____

SEO & DIGITAL MARKETING CONTRACT

This Agreement is made on **[Date]**, between **[Client Name]** ("Client") and **NOVADESK** ("Agency").

1. SCOPE OF SERVICES

The Agency will provide SEO and Digital Marketing services to improve the visibility of the Client's website. Services include:

- **On-Page SEO:** Title tags, meta descriptions, heading optimization, and schema markup.
- **Technical SEO:** Site speed optimization, XML sitemaps, robots.txt, and crawlability checks.
- **Off-Page SEO:** Backlink profile building and directory submissions (if included in SOW).
- **Reporting:** Monthly traffic and keyword ranking reports.

2. NO RANKING GUARANTEE

Search engine algorithms are dynamic and controlled entirely by third-party search engines (e.g., Google, Bing). The Agency **does not guarantee** specific rankings on search engines (e.g., "Page 1 ranking for Keyword X"). The Agency guarantees adherence to white-hat, industry-standard SEO best practices.

3. CLIENT OBLIGATIONS

The Client must provide the Agency with administrative access to:

- Website CMS (Content Management System)
- Hosting / Server (if required for technical fixes)
- Google Analytics & Google Search Console

4. TERM AND CANCELLATION

SEO is a long-term strategy. This Agreement is effective for a minimum term of **[Number, e.g., 3] months**. Thereafter, it will continue on a month-to-month basis. The Client may cancel the service with a **30-day written notice**.

5. PAYMENT TERMS

- **Monthly Retainer:** Rs. [Amount] + applicable GST.
- Payments are due on the **1st of every month in advance**. Work will be paused if payments are delayed beyond 5 days.

6. SIGNATURES

For Client

Signature: _____

Date: _____

For NOVADESK

Signature: _____

Date: _____